

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Eduardo Perez Mendoza et al v. Ronkar Deliveries LLC
Eduardo Perez Mendoza et al v. Ronkar Deliveries LLC

23CV001390
24CV002048

STATUS CONFERENCE RE: STATUS OF SUPREME COURT’S DECISION IN *FLOWERS FOOD*

TENTATIVE RULING: The Court is in receipt of the parties’ July 29, 2026 supplemental briefs filed in case no. 24CV002048, as ordered by the Court’s July 15, 2026 Minute Order in case no. 23CV001390. It appears the Court now has everything before it to issue a substantive ruling on the motions to compel arbitration, which originally came on for hearing on March 5, 2026 in case no. 24CV002048 and March 20, 2026 in case no. 23CV001390, and on which the Court issued a partial ruling, but deferred ruling on Plaintiffs’ defenses until the United States Supreme Court had issued its decision in *Flowers Food, Inc., et al. v. Brock* (2026) 146 S.Ct. 1358 (No. 24-935) (*Flowers Food*).

Based on the foregoing, both matters are set for a hearing on August 28, 2026, at 8:30 a.m. in Dept. A on Defendant’s separate Motions to Compel Arbitration (filed on January 28, 2026 in case no. 24CV002048 and filed on February 24, 2026 in case no. 23CV001390). Pursuant to Local Rule 2.9, the Court will post a Tentative Ruling the day prior, which ruling will be based on the parties original briefing, as well as the above-referenced supplemental briefing.

If this ruling is inconsistent with either party’s understanding, that party shall request oral argument pursuant to Local Rule 2.9 and appear at the hearing to discuss with the Court.

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Lorena Zuniga Montelongo v. Bianco Winegrowing

25CV001906

[1] CASE MANAGEMENT CONFERENCE

[2] DEFENDANT BIANCO WINEGROWING’S MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS

TENTATIVE RULING: The motion is GRANTED. Plaintiff Lorena Zuniga Montelongo is ordered to arbitrate her claims against Defendant Bianco Winegrowing (Bianco) pursuant to the parties’ Arbitration Agreement. Ms. Montelongo’s class claims are DISMISSED. The instant action is STAYED pending resolution of the arbitration. The Case Management Conference is VACATED. The Court orders the matter set for a Status of Arbitration hearing on December 9, 2026, at 8:30 a.m. in Dept. A.

A. PRELIMINARY MATTERS

1. Nature of the Motion

Bianco moves, pursuant to the Federal Arbitration Act (9 U.S.C. 4) and the California Arbitration Act (Code Civ. Proc., section 1280, *et seq.*), for an order (1) compelling Ms. Montelongo to arbitrate the claims asserted through her Complaint in this action; (2) dismissing her class claims; and (3) staying proceedings pending completion of the individual arbitration.

2. Nature of the Action

Ms. Montelongo alleges that she was employed by Bianco from January through August 2025, and that during her employment Bianco failed to pay her for all hours worked, failed to provide uninterrupted meal periods, failed to permit uninterrupted rest periods, failed to indemnify her for necessary business expenses, failed to timely pay all final wages, and failed to furnish accurate wage statements to her. Plaintiff asserts, on behalf of herself and a class of similarly situated employees of Bianco, claims for violation of the Labor Code based on the foregoing, as well as a claim for Unfair Business Practices.

B. LEGAL BACKGROUND

A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) Generally, on a motion to compel arbitration, supported by prima facie evidence of a written agreement to arbitrate the underlying controversy, a court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413.)

The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*) California law strongly favors arbitration. (*Prima Donna Development Corp. v. Wells Fargo Bank, N.A.* (2019) 42 Cal.App.5th 22, 35 (*Prima Donna*).)

A. LEGAL ANALYSIS

1. Bianco Makes a Prima Facie Showing of a Binding Agreement to Arbitrate Ms. Montelongo's Claims

Bianco presents evidence sufficient to make a prima facie showing that Bianco and Ms. Montelongo entered into that certain Arbitration Agreement attached as Exhibit B to the Declaration of Enrique Pedroza (Pedroza Decl.). (See Pedroza Decl. at ¶¶ 1-10.) By the Arbitration Agreement, Ms. Montelongo, defined as Employee, and Bianco, defined as the Company agreed “that any and all disputes, controversies, or claims between the Parties relating to, resulting from, or in any way arising out of Employee’s relationship with Company,

Employee's employment relationship with Company and/or the termination of Employee's employment relationship with Company shall be determined exclusively by final and binding arbitration, rather than a judge or jury, in accordance with the terms of this Agreement." (*Id.*, Exh. B at p. 1.) The Court finds that Plaintiff's claims asserted in this action fall within the scope of the Arbitration Agreement, and that none fall within any of the enumerated exceptions. (See *id.* at ¶¶ 1-3.)

Based on the foregoing, the Court finds that Bianco has carried its initial burden of making a prima facie showing of an agreement to arbitrate the present dispute. (See *Rosenthal, supra*, 14 Cal.4th at 413.)

Ms. Montelongo argues that "Plaintiff testifies in her declaration that she does not recall signing the Agreement and does not believe the handwriting or signature contained in the Agreement is her handwriting and signature." (Opposition at 14:2-6.) Through her Declaration, she states "I do not recall filling out or signing an agreement to arbitrate." (Declaration of Lorena Zuniga Montelongo at ¶ 4 (Montelongo Decl.).) She also states, "I do not believe the handwriting on page 1 and the signature contained at the end of the document attached as 'Exhibit A' to the Pedroza Declaration are my handwriting and signature." (*Ibid.*)

The Court is not persuaded that this evidence is sufficient to shift the burden back to Bianco to prove that the signature is, in fact, Ms. Montelongo's. "[A]n individual is capable of recognizing his or her own personal signature. If the individual does not deny that the handwritten personal signature is his or her own, that person's failure to remember signing is of little or no significance." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 757 (*Iyere*).)

Ms. Montelongo's statement that she "[does] not believe" that the signature on the document is hers is vague and ambiguous. She does not plainly deny that the signature is her own. Her assertion that she does not "believe" that it is requires some explanation as to the nature and source of that belief. For example, if the belief is based on her statement that she does not recall being presented with an agreement to arbitration and does not remember signing it, then it is insufficient to overcome her burden of establishing a defense to agreement's enforcement. (See *Iyere, supra*, 87 Cal.App.5th at 757.) Moreover, Ms. Montelongo does not provide the Court with a sample of her signature for comparison.

Moreover, Bianco, in support of its Reply, provides additional evidence in the form of onboarding documents and cashed payroll checks containing Ms. Montelongo's handwritten name and signature. (See Supplemental Declaration of Enrique Pedroza at ¶¶ 9-10 and Exhs. A and B.¹) Plaintiff's name is written, on each, in a style perfectly consistent with each of the others and with the Arbitration Agreement. Particularly in light of the ambiguous nature of Ms. Montelongo's statement that she does not believe that the signature on the Arbitration Agreement is hers, the Court finds, from a preponderance of the evidence, that Ms. Montelongo did, in fact, apply her signature to the Arbitration Agreement. (See *Iyere, supra*, 87 Cal.App.5th at 755.)

¹ Ms. Montelongo's objection to this evidence is OVERRULED. The evidence is submitted to rebut evidence presented by Ms. Montelongo through the Opposition.

2. The Court Does Not Find the Arbitration Agreement Unconscionable

Ms. Montelongo argues that the Arbitration Agreement is not enforceable pursuant to the doctrine of unconscionability.

The FAA generally restricts states' rights to limit the enforceability of arbitration agreements or clauses. (See *Prima Donna, supra*, 42 Cal.App.5th at 36.) However, "the FAA contains a 'saving clause,' which 'permits agreements to arbitrate to be invalidated by generally applicable contract defenses, such as fraud, duress, or unconscionability.'" (*Id.*, quoting *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.)

The central inquiry in resolving a claim of unconscionability is whether the contract provisions were unconscionable at the time they were made. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1133–1134.) The defense is "inherently fact specific." (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 138.) "The burden of proving unconscionability rests upon the party asserting it." (*Id.* at 126.) Under the FAA, unconscionability claims are to be resolved by the trial court before enforcing an arbitration agreement. (*Id.* at 138.)

"A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party." (*OTO, L.L.C. v. Kho, supra*, 8 Cal.5th at 125.) Thus, the doctrine of unconscionability has both a procedural and a substantive element. (*Ibid.*) "The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. [Citations.] Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided." [Citation.]" (*Ibid.*)

"The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (Citation.) But they need not be present in the same degree. 'Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves.' (Citation.) In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*) abrogated on other grounds by *AT&T Mobility LLC v. Concepcion* (2010) 563 U.S. 333, [131 S.Ct. 1740, 179 L.Ed.2d 742].)

a. *Ms. Montelongo Fails to Show that the Circumstances of the Contract's Formation Created Oppression or Surprise*

For procedural unconscionability, the "pertinent question" is "whether circumstances of the contract's formation created such oppression or surprise that closer scrutiny of its overall fairness is required." (*OTO, L.L.C. v. Kho, supra*, 8 Cal.5th at 126.) "Oppression occurs where a contract involves lack of negotiation and meaningful choice, surprise where the allegedly

unconscionable provision is hidden within a prolix printed form.” (*Ibid.*) ““The circumstances relevant to establishing oppression include, but are not limited to (1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party’s review of the proposed contract was aided by an attorney.”” (*Id.* at 126-127 quoting *Grand Prospect Partners, L.P. v. Ross Dress for Less, Inc.* (2015) 232 Cal.App.4th 1332, 1348.) “Unfair surprise covers a variety of deceptive practices and tactics, including hiding a clause in a mass of fine print or phrasing a clause in language that is incomprehensible to a layperson. (*Penilla v. Westmont Corp.* (2016) 3 Cal.App.5th 205, 216. Internal quotations omitted.)

Ms. Montelongo argues that “the Agreement is a standardized form, pre-drafted, and, purportedly imposed upon Plaintiff at the start of her employment. Plaintiff was never provided an opportunity to fully read, review or understand the Agreement . . .” (Opposition at 3:23-25.) The only evidence produced in support of the Opposition is a Declaration from Ms. Montelongo (Montelongo Decl.) Ms. Montelongo’s evidence supports none of the foregoing assertions. As relevant to this instant issue, she declares only that “I do not recall reading any agreement to arbitrate when I commenced work for Defendant. I recall filling out several forms and paperwork but I do not recall what forms I filled out. I do not recall being given an opportunity to carefully read each and every form I was provided. I do not recall filling out or signing an agreement to arbitrate.” (Montelongo Decl. at ¶ 4.) All that the evidence establishes is that Ms. Montelongo does not recall being presented with a proposal for an agreement to arbitrate and does not recall filling one out or signing one.

There is no evidence tending to suggest that Bianco conditions employment on an employee’s agreement to arbitrate disputes. Mr. Pedroza declares that “[e]mployees are provided with a copy of the agreement in their preferred language during the onboarding process. . . . If employees decide to agree to the arbitration policy, employees sign the agreement and give the signed version to me or another BW representative.” (Pedroza Decl. at ¶¶ 6-7.) The Arbitration Agreement states, at the third paragraph of the document, in bold, enlarged font, “Please read and review this arbitration agreement carefully. Your signature below indicates that you agree to resolve any and all disputes, controversies or claims that may arise or relate to your employment through arbitration. The Company will not retaliate or discriminate against you if you choose not to sign this agreement.” (*Id.* at Exh. B. Formatting omitted.)

Against this evidence that she was free to sign or not sign at her choosing, Ms. Montelongo presents no evidence that she was given a timeline, pressured to sign the agreement, or pressured to sign the agreement within a certain time.

Ms. Montelongo declares that “I was not advised that I could take the documents away for a time to review them and consult with an attorney.” (Montelongo Decl. at 2:18-19.) However, she presents no evidence that she asked to take the documents to review them, or even that she *would have* had she been advised that she could. In the context of evidence that she was never required or pressured to sign the documents, the Court does not find that her statement that

Bianco failed to inform her that she could take the documents away tends to support a finding of oppression.

Similarly, Ms. Montelongo presents no evidence that she wished to consult with an attorney, or that she would have had she been informed that she could take the documents away. Moreover, the last paragraph of the Arbitration Agreement states, in all capital letters, “EMPLOYEE FURTHER ACKNOWLEDGES THAT EMPLOYEE HAS BEEN GIVEN THE OPPORTUNITY TO DISCUSS THIS AGREEMENT WITH EMPLOYEE’S PRIVATE LEGAL COUNSEL AND EMPLOYEE HAS UTILIZED THAT OPPORTUNITY TO THE EXTENT DESIRED.” (Pedroza Decl. at Exh. B, § 17, p. 5.) In this context, the fact that her review was not aided by an attorney does not support a finding of oppression by Bianco in the circumstances of the Arbitration Agreement’s formation.

Arbitration Agreements are, by their nature, somewhat complex for the layperson to understand. However, the Court finds the subject agreement, when compared with other agreements of the type, fairly accessible in both language and formatting. It employs plain English rather than legalese, and concisely addresses each topic. Each section is clearly titled with the subject thereof. It is printed in large, clearly legible font. Plaintiff’s contention that “the Agreement does not specify which of AAA’s rules, policies and procedures are applicable” is false. The agreement provides that “[a]rbitration shall take place in Napa County, California before a single neutral arbitrator in accordance with the Federal Arbitration Act and the rules and regulations then in effect of the American Arbitration Association for the resolution of employment disputes.” (Pedroza Decl. at Exh. B, § 6, subd. (b), p. 3.)

On the other hand, the Arbitration Agreement does not specifically inform its reader as to the nature of arbitration. The Court acknowledges Ms. Montelongo’s declaration that she “does not have extensive experience in jobs that require me to read, analyze or draft documents or correspondence” (Montelongo Decl. at ¶ 2.) Ms. Montelongo also declares that she does not “understand what an agreement to arbitrate means.” (*Id.* at ¶ 4.) Moreover, while Bianco presents evidence that when the proposed agreement is presented to employees, management personnel are “available to answer any questions the employee might have,” there is no evidence submitted with the moving papers that Bianco provides employees with any explanation of either the proposed agreement or the concept of arbitration.

Again, however, the un rebutted evidence indicates that Ms. Montelongo was not required to sign the Arbitration Agreement. There is no evidence tending to show that she was pressured into signing the Arbitration Agreement. In the absence of such pressure, Ms. Montelongo was apparently free to educate herself regarding arbitration, and to develop a full understanding of the terms contained in the Arbitration Agreement. Again, there is no evidence tending to show that she made any effort to do so.

Based on the foregoing, the Court finds only minimal indices of procedural unconscionability; minimal indices that the circumstances of the Arbitration Agreement’s formation “created such oppression or surprise that closer scrutiny of its overall fairness is required.” (*OTO, L.L.C. v. Kho, supra*, 8 Cal.5th at 126.)

b. *Plaintiff Makes No Showing that Any of the Agreement's Terms Are Overly Harsh or Unreasonably Favorable to Bianco*

“Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246.) “To reiterate, we assess unconscionability with a sliding scale approach. [Citation.] In light of the high degree of procedural unconscionability, even a low degree of substantive unconscionability could render the arbitration agreement unconscionable.” (*Carmona v. Lincoln Millennium Car Wash, Inc.* (2014) 226 Cal.App.4th 74, 85.) “Given the lack of choice and the potential disadvantages that even a fair arbitration system can harbor for employees, we must be particularly attuned to claims that employers with superior bargaining power have imposed one-sided, substantively unconscionable terms as part of an arbitration agreement. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 115.)

Relying on the holding in *Cook v. Univ. of So. Cal.* (2024) 102 Cal.App.5th 312 (*Cook*), Ms. Montelongo argues that two aspects of the Arbitration Agreement are substantively unconscionable: (1) its duration; and (2) its requirement that Ms. Montelongo arbitrate claims she may have against Bianco-related third parties, but does not require those third parties to arbitrate claims against Ms. Montelongo.

Cook involved “an arbitration agreement of infinite duration [that] requires an employee to arbitrate all claims against the employer, its agents, affiliates, and employees irrespective of whether they arise from the employment relationship.” (*Cook, supra*, 102 Cal.App.5th at 316.) The *Cook* court affirmed the trial court’s denial of Defendant University of Southern California’s (USC) motion to compel arbitration on grounds that the arbitration award at issue was unconscionable.

The facts presented here are clearly distinguishable in each material respect. Again, the holding in *Cook* was explicitly based on that arbitration agreement’s unlimited scope. “By its express terms, the agreement requires the arbitration of ‘all claims, whether or not arising out of Employee’s University employment, remuneration or termination, that Employee may have against the University or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise; and all claims that the University may have against Employee.’ The plain language of the agreement requires Cook to arbitrate claims that are unrelated to her employment with USC.” (*Cook, supra*, 102 Cal.App.5th at 321.)

Here, by stark contrast, the scope of the Arbitration Agreement is specifically limited to claims “arising from, related to, or having any relationship or connection whatsoever with an Employee seeking employment with, employment by, or other association with or termination by the Company,” (Pedroza Decl. at Exh. B, § 1, p. 1.) This limited scope is consistent with the arbitration agreements found not to be substantively unconscionable, respectively, in *Roman v. Super. Ct.* (2009) 172 Cal.App.4th 1462 (*Roman*), and *Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064 (*Little*). The *Cook* Court explicitly distinguished those cases and their holdings based on the limited scope of their respective arbitration agreements. (See *Cook, supra*, 102

Cal.App.5th at 323 “[i]n *Roman*, unlike here, the arbitration clause in question was expressly limited to claims arising from the employee’s job application and subsequent employment . . . [and] . . . [t]he same is true of the arbitration agreement at issue in *Little*”].)

The holding in *Cook* was further based on the arbitration agreement’s explicitly unlimited duration. “The trial court also found the arbitration agreement was unconscionable because it survived indefinitely following Cook’s termination from USC. The agreement expressly states that it ‘shall survive the termination of Employee’s employment, and may only be revoked or modified in a written document that expressly refers to the “Agreement to Arbitrate Claims” and is signed by the President of the University.’”(*Cook* , *supra*, 102 Cal.App.5th at 325.)

Ms. Montelongo attempts to find parallels in the language of the instant Arbitration Agreement providing that the duty to arbitrate survives the termination of employment. (See Opposition at 9:17-10:4 [“Section 16 of the Agreement further mirrors the problematic language in *Cook* by creating an agreement of infinite or indefinite duration”].) This provision does not, however, require Ms. Montelongo to arbitrate disputes *arising after* the termination of employment, as was the case with the agreement at issue in *Cook*. Because the duty to arbitrate applies only to employment-related claims, its duration is necessarily finite; limited to the duration of the employment relationship.

Ms. Montelongo argues that the Arbitration Agreement is unfairly one-sided because it provides significant benefit to Bianco’s affiliates without any reciprocal benefit to Plaintiff. (See Opposition at 8:20-9:16.) Again, the Court disagrees that *Cook* is dispositive. The *Cook* court’s finding of a lack of mutuality arising from the inclusion of third-party beneficiaries was specifically related to the overbroad duration and scope of the arbitration agreement. “No explanation is offered as to why Cook should be required to give up the ability to *ever* bring claims in court against a USC employee *that are unrelated to USC or her employment there*. (*Cook*, *supra* at p. 327. Italics added.) “The concern here is not that the arbitration agreement provides ancillary benefits to third parties. The concern is that the agreement provides benefits to broad swaths of third-party beneficiaries only in favor of USC without any showing of justification for this one-sided treatment.” (*Id.* at 326-27.)

Because the scope of the Arbitration Agreement here is specifically limited to claims arising out of the employment relationship or the termination thereof, and is not of unlimited duration, it does not create the one-sided advantage to the employer and its affiliates present in *Cook*. The purpose of the provision – ensuring that all claims arising out of the employment relationship are resolved in a single forum – serves the interests of all parties by promoting efficiency and economy in the litigation process.

Ms. Montelongo argues that the confidentiality provision of the Arbitration Agreement is substantively unconscionable under the holding in *Hasty v. American Automobile Assn. etc.* (2023) 98 Cal.App.5th 1041 (*Hasty*).) Not so. The holding in *Hasty* was expressly limited to claims not asserted here. (See *id.* at 1062 [“we conclude the confidentiality clause in the arbitration agreement benefits only the Association *with respect to harassment, retaliation, and discrimination claims*, such as the claims here, and is thus substantively unconscionable”]. Italics added.)

In general, a “provision requiring confidentiality is not unconscionable. In regard to ‘the fairness or desirability of a secrecy provision with respect to the parties themselves, . . . we see nothing unreasonable or prejudicial about it,’ and it is not substantively unconscionable.” (*Sanchez v. Carmax Auto Superstores California, LLC* (2014) 224 Cal.App.4th 398, 408 (*Sanchez*), disapproved on other grounds by *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 505.) Moreover, the relevant provision here, in contrast to those at issue in either *Hasty* or *Sanchez* does not provide that the arbitration itself shall be confidential. Rather, it provides only that “[a]ny award, results, or findings issued by the arbitrator shall remain confidential unless otherwise prohibited by law.” (Pedroza Decl. at Exh. B, § 10, p. 4.) Ms. Montelongo fails to persuade the Court that this provision is unfairly one-sided.

Ms. Montelongo asserts that the provisions of Section 13 of the Arbitration Agreement are substantively unconscionable pursuant to the holding in *Armendariz*. Neither Ms. Montelongo’s reading of Section 13, subdivision (a) [as providing for an award of attorneys’ fees against the losing party in arbitration (see Opposition at 11:22-25)] nor her reading of subdivision (b) [as “making it seem like both sides bear their own costs by default” (*Id.* at 12:1-4)] are supported by the text of that section of the Arbitration Agreement. As such, Ms. Montelongo fails to persuade the Court that any aspect of Section 13 runs afoul of the limitations articulated in *Armendariz* or is otherwise unfairly one-sided.

Finally, Ms. Montelongo argues that the injunctive relief provision is unfairly one-sided. Ms. Montelongo acknowledges, however, that the provision is “facially mutual.” (See Opposition at 12:17.) She argues that, in spite of this fact, the provision is one-sided because “emergency injunctive relief in the employment context is almost exclusively sought by employers (to stop departing employees from using trade secrets, soliciting customers, etc.), not employees.” (*Id.* at 12:17-19.)

Ms. Montelongo fails to cite to evidence or authority in support of her assertion that employers seek injunctive relief more frequently. Moreover, a provision is not “unfairly one-sided merely because one side is, as a practical matter, more likely to make use of it.” (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1248, fn. 4.0) Finally, there is no indication, here, that *either* party seeks injunctive relief through the litigation.

c. Conclusion

As noted above, “A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree *and* the contract contains terms that are unreasonably favorable to the other party.” (*OTO, L.L.C. v. Kho, supra*, 8 Cal.5th at 125. *Italics added.*) Ms. Montelongo makes no showing that any provision of the Arbitration Agreement is unreasonably favorable to Bianco or otherwise unduly harsh.

For this reason, the Court does not find that the Arbitration Agreement is unenforceable based on the doctrine of unconscionability.

3. Ms. Montelongo Waived her Right to Bring Class Claims Against Bianco

Bianco moves for an order dismissing Plaintiff's class claims. (See Notice of Motion at 1:25.)

The Arbitration Agreement provides that "[t]he Parties agree not to bring any disputes between each other on a collective or class basis; rather, the Parties agree to bring such disputes in arbitration on an individual basis only." (Pedroza Decl. at Exh. B, § 7, p. 3.)

The Court finds that the foregoing provision constitutes a waiver, by Ms. Montelongo, of her right to assert class-claims against Bianco relating to her employment. Ms. Montelongo appears to concede the issue by failing to address it through her Opposition.

Based on the foregoing, the request to dismiss Ms. Montelongo's class claims is GRANTED.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Phillip Craig

26PR000061

MOTION TO DISPENSE WITH BOND AND ACCOUNTING PURSUANT TO PROBATE CODE §2628

TENTATIVE RULING: The Petition is GRANTED. Bond is ordered discharged pursuant to Probate Code section 2323, subdivision (a). Accountings are hereby waived so long as the conditions under Probate Code section 2628, subdivision (a) continue to be satisfied.